

HOUSE BILL 2190

By Jones J

AN ACT to amend Tennessee Code Annotated, Title 4 and
Title 68, relative to climate.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 68, is amended by adding the following
as a new chapter:

68-206-101. Short title.

This chapter is known and may be cited as the "Climate Resilient Tennessee
Act."

68-206-102. Office of resilience.

There is created the office of resilience, to be administratively attached to the
governor's office.

68-206-103. "Office" defined for this chapter.

As used in this chapter, "office" means the office of resilience created by § 69-
206-102.

68-206-104. Duties and responsibilities.

The office has the following duties and responsibilities:

- (1) Coordinate the resilience task force and provide strategic direction for
governmental resilience initiatives to build long-term climate resilience for a
robust, vibrant economy, sustainable natural environment, healthy communities,
and an equitable and just transition to the future climate;
- (2) Establish an inter-department resilience coordination team;

(3) Establish, in collaboration with the inter-department resilience coordination team, a statewide resilience plan and framework to facilitate coordination across resilience plans at all levels of government;

(4) Provide technical guidance and assistance or support to departments and local and regional jurisdictions to integrate statewide resilience goals into future projects, plans, and programs, and to foster intermunicipal cooperation;

(5) Establish a means of tracking progress toward statewide goals on climate resilience;

(6) Identify and develop policies necessary to implement a statewide resilience plan and risk mitigation strategy;

(7) Establish and maintain a website to facilitate the functions and duties of the office;

(8) Establish and maintain a principal office and other offices within the state as the office may deem necessary;

(9) Appoint a secretary, counsel, clerks, and other employees and agents as it may deem necessary, fix compensation within the limitations provided by law, and prescribe duties; and

(10) Require that state and municipal departments, agencies, public authorities, task forces, commissions, or other state or municipal government bodies provide, and the same are hereby authorized to provide, such assistance, documents, and data as will enable the office to carry out its functions and duties.

68-206-105. Chief resilience officer - Duties and responsibilities.

(a) The head of the office is the chief resilience officer who is appointed by the governor and who holds office at the pleasure of the governor.

(b) The chief resilience officer has the following duties and responsibilities:

(1) Employ or allocate the necessary staff, and request the assistance of personnel of state or municipal departments or agencies, to carry out the functions, powers, and duties provided in this chapter or as otherwise provided by law;

(2) Manage the office, the budget for the office, and related functions as provided by law;

(3) Review and reconcile department comments on federally sponsored resilience and risk mitigation activities to develop and present an official state position;

(4) Represent the policy and consensus viewpoint of this state at the federal, regional, state, and local levels with respect to resilience and risk mitigation;

(5) Monitor and seek available funds to support resilience priorities, including coordinating cross-department federal funding applications for community resilience projects;

(6) Provide strategic direction for inter-department and cross-disciplinary initiatives to build resilience, in collaboration with other relevant resilience task force and entities as the chief resilience officer deems appropriate, for the purposes of climate resilience planning and goal development, tracking and reporting progress on climate resilience goals, and public engagement on climate resilience issues;

(7) Appraise the adequacy of statutory and administrative mechanisms for coordinating the state's policies and programs at both the intrastate and interstate levels, and between federal, state, and local governments, with respect to resilience and risk mitigation;

(8) Develop, where appropriate, intrastate or intergovernmental agreements to formalize coordination roles for regional resilience projects;

(9) Appraise policy barriers to meet the goals of the state with respect to resilience and risk mitigation;

(10) Serve as a subject-matter expert for the state on issues related to resilience and risk mitigation and provide recommendations to the general assembly and United States congress with respect to policies, programs, and coordinating mechanisms relative to resilience and risk mitigation;

(11) Assist with the state's planning efforts, including, but not limited to, a statewide resilience plan, a state hazard mitigation plan, and other relevant state and regional plans for which there is a state interest, to ensure the incorporation and alignment of the state's resilience goals and objectives into a unified, proactive, pre-disaster approach to adaptation and near-, mid-, and long-term resilience;

(12) Serve as a clearinghouse for the benefit of municipalities regarding information relating to flooding, extreme heat, and other risk prevention and mitigation, including impact prevention and mitigation project funding programs, and other information relating to common problems with respect to these hazards and the state and federal services available to assist in solving related problems; and

(13) Take other actions consistent with the law as deemed necessary by the chief resilience officer to carry out the officer's duties and responsibilities.

68-206-106. Statewide resilience plan.

(a) To coordinate and strengthen efforts to reduce losses from future disasters across the state, the office shall contribute to all statewide planning efforts related to

resilience and risk mitigation and develop a strategic statewide resilience plan to protect the state from climate threats.

(b) The plan must be developed using the best available science, including a range of future projections, to identify, implement, or reform policies, projects, and programs to achieve the office's goals and objectives.

(c) The plan must prioritize natural, nature-based, and non-structural approaches to mitigate climate threats wherever possible, including, without limitation, use of permeable surfaces; rain gardens; green roofs; tree canopy expansion; wetland restoration; removing, altering, or right-sizing dams; natural area conservation; wastewater and stormwater infrastructure upgrades; alteration of structures; buyouts; and other flood and extreme heat prevention, mitigation, and resiliency strategies or projects.

(d) The plan must include, but is not limited to:

(1) The state's resilience goals and objectives;

(2) Department-specific recommendations for strategic actions, including criteria for prioritization based on a vulnerability assessment of the risks from multiple environmental threats to department mission areas, assets, services, and populations served;

(3) Resilience indicators to be tracked and reported to the public over time in an annual report; and

(4) A framework for resilience project development, funding, and implementation. The framework must include, but is not limited to, the following:

(A) Spatial analysis of projected climate threat exposure and vulnerability, including, but not limited to, flood, extreme heat and precipitation, storm events, wildfires, and other risks. The analysis and

resulting maps must delineate risks geographically and by social and ecological vulnerability using statewide or regional, peer-reviewed, or best available scientific sources;

(B) An accessible, updated database or inventory of critical infrastructure vulnerable to current and future flooding, developed in collaboration with municipalities. This includes infrastructure that is essential for critical government and business functions, national security, transportation, utilities, public health and safety, the economy, flood and storm protection, water quality management, and wildlife habitat management;

(C) Maps or accessible visual representations of federal, state, and local municipal and county projects planned to reduce risks, along with identifying the federal, state, or local departments and agencies leading those projects and the funding source; and

(D) A strategic plan for developing, funding, and financing projects that address risks through federal, state, local, and private sources. The strategic plan must:

(i) Include a strategy with the goal of ensuring that disadvantaged communities, as identified using the affordability criteria created pursuant to § 68-221-1205, receive forty percent (40%) of the benefits of proposed plans and projects; provided, however, that disadvantaged communities must receive no less than thirty-five percent (35%) of such benefits; and

(ii) Seek to build alignment and efficiencies across vulnerability assessments and resilience strategies.

68-206-107. Resilience task force.

(a) There is created within the office a resilience task force to provide strategic direction to resilience efforts across the state and make recommendations to the office.

(b) The task force is composed of:

(1) The chief resilience officer, who serves as chair and represents the views of the inter-department resilience coordination team;

(2) The commissioner of environment and conservation or the commissioner's designee;

(3) The commissioner of safety or the commissioner's designee;

(4) The commissioner of economic and community development or the commissioner's designee;

(5) The secretary of state or the secretary's designee;

(6) The commissioner of finance and administration or the commissioner's designee;

(7) The commissioner of health or the commissioner's designee;

(8) The chair of the state energy policy council, created pursuant to § 68-204-101, or the chair's designee;

(9) The commissioner of transportation or the commissioner's designee;

(10) The commissioner of agriculture or the commissioner's designee;

and

(11) A member of the general public with expertise in resilience planning selected by the governor.

68-206-108. Department resilience coordinators.

Each department included in the resilience task force, and any other departments to be included in resilience planning as designated by the chief resilience officer or

resilience task force, shall appoint a resilience coordinator to work with the chief resilience officer to ensure resilience is integrated into department missions and priorities, and otherwise coordinate with the chief resilience officer. The coordinators serve on the inter-department resilience coordination team established by this chapter. Each coordinator is appointed with the exclusive role of focusing on climate resilience through the respective department's mission and activities.

68-206-109. Inter-department resilience coordination team.

(a) There is created within the office an inter-department resilience coordination team to maintain awareness, communication, and alignment with regard to the state's resilience and risk mitigation needs, progress, and priorities and to oversee development of the statewide resilience plan.

(b) The team must:

(1) Be composed of resilience coordinators from each department included on the resilience task force or otherwise designated by the chief resilience officer or resilience task force;

(2) Meet upon the call of the chief resilience officer, with a minimum of four (4) meetings annually;

(3) Develop strategic plans for departments and collaborate in the development of a statewide resilience plan; and

(4) Develop and implement a plan for public engagement, review key products of the statewide resilience plan, and track and report progress.

(c) The chief resilience officer shall convene the first meeting of the inter-department resilience coordination team on or before the ninetieth day after July 1, 2026.

68-206-110. Public engagement and reporting.

(a) The resilience task force shall develop a statewide resilience plan and hold at least six (6) public meetings on the draft plan that include periods for public comment, including two (2) meetings in each of the state's grand divisions. The task force shall allow at least one hundred twenty (120) days for public comment. The task force shall provide meaningful opportunities for public comment from all segments of the population that will be impacted by the plan, including persons living in disadvantaged communities, as identified using the affordability criteria created pursuant to § 68-221-1205.

(b) Beginning July 1, 2027, and every five (5) years thereafter, the office shall complete and submit an updated statewide resilience plan to the governor and the legislative librarian and make the plan publicly available.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. For purposes of carrying out administrative duties necessary to effectuate this act, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it.